

March 25, 2021



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 14372
(SIXTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain foreign manufactured non-DOT specification steel cylinders, which are used as components (fire extinguishers) in aircraft. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce. The safety analyses did not consider the hazards and risks associated with use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.309(a) in that non-DOT specification cylinders are not authorized therein; and § 180.213(a) in that the requalifier is authorized to remove specification markings from the metal plate of the cylinders.

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5. BASIS: This special permit is based on the application of Kidde Technologies Inc., dba Kidde Aerospace & Defense (KAD) dated November 4, 2020, submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Fire extinguisher <i>containing compressed or liquefied gas</i>	2.2	UN1044	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packagings prescribed are non-DOT specification foreign-made steel or stainless steel cylinders. Each cylinder must have affixed, or by use of an adhesive metal label, the approval number and the name and address of the manufacturer. This marking must also include the serial number, capacity, weight, charging pressure, test pressure, date of test, inspector's stamp, name of contents and filling instructions. Cylinders with the following L'Hotellier (formerly ABG-Semca, Kidde-Dexaero, Dexaero & Thompson-CSF) part numbers are authorized: 860640, 861630, 860830, 860840, 860650, 862690, 861390, 10230-01, 864250-01, 863490-01, and 14155-01.

b. OPERATIONAL CONTROLS:

(1) This special permit covers only cylinders (fire extinguishers) to be used in aircraft of foreign manufacture, which are provided for under the bilateral agreement between France and the United States, implemented by the French Direction Generale del' Aviation Civile (DGAC) and the United States Federal Aviation Administration (FAA).

(2) The cylinders (fire extinguishers) are installed on:

(i) The Fan Jet Falcon Series aircraft manufactured by Dassault Aviation and have

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received design approval as manifested by Type Certification of the aircraft by the DGAC and subsequent validation by the FAA (Type Certificates A46EU and A50NM); and

(ii) The Airbus Helicopters France series rotorcraft (helicopters) manufactured by Airbus Helicopters France and have received design approval as manifested by Type Certification of the rotorcraft by the DGAC and subsequent validation by the FAA (Type Certificates H4EU, H10EU and H11EU).

(3) Each fire extinguisher shipped under this special permit must be overpacked in strong non-bulk outer packagings.

(4) Transportation of the cylinders authorized under this special permit is only authorized to and from: cylinder requalification facilities; aircraft original equipment manufacturer (OEM); aircraft operators, aircraft parts distributors; and aircraft repair stations.

(5) Cylinders (fire extinguishers) manufactured by French manufacturer L'Hotellier and marked ICC-4DA must have the specification marking (ICC-4DA) obliterated during the requalification. This must be performed by L'Hotellier or an L'Hotellier Authorized Service Center that maintains current L'Hotellier production drawings. This requirement applies to cylinders (fire extinguishers) manufactured under the following drawing numbers: 860640, 861630, 861390, 860830, 860840, 860650 and 862690. Removal must be from the metal plate - no grinding on the cylinder itself may be performed. This ICC marking is not valid due to the lack of independent third party inspection during manufacturing.

(6) Cylinders (fire extinguishers) manufactured by French manufacturer L'Hotellier from stainless steel and that have no US DOT specification markings present on any of the mounting lugs due to lack of third party inspection during manufacturing shall be metal stamped "DOT-SP 14372" on one of the mounting lugs during the requalification. This must be performed by L'Hotellier or an L'Hotellier Authorized Service Center that

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maintains current L'Hotellier production drawings. This requirement applies to cylinders manufactured under the following drawing numbers: 10230-01, 864250-01, 863490-01, and 14155-01.

(7) Cylinders must be requalified in accordance with the requirements specified in Part 180 of the HMR for DOT 4DA specification for cylinders listed in paragraph 7.b.(5) and for DOT 4DS specification for cylinders listed in paragraph 7.b.(6).

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING:

(1) The outside of each cylinder must be plainly and durably marked "DOT-SP 14372" and with the contents, in connection with and in addition to the other markings and the label prescribed by the DOT regulations.

(2) Each strong outer packaging containing fire extinguishers authorized under this special permit must be marked "INSIDE CONTAINERS COMPLY WITH DOT-SP 14372".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft and passenger-carrying aircraft subject to transportation limitations as prescribed for equivalent size DOT specification cylinders. See paragraph 7.b.(4) for restrictions.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this exemption. The shipper must furnish a current copy of this exemption to the air carrier before or at the time the shipment is tendered.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 – Immediate notice of certain hazardous materials incidents, and 171.16 – Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator

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for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: SHAFKEY